

**How Law Can Promote a More Sustainable Fashion Industry Through Incorporating the
Interests of Governments, Businesses, and Consumers**

Connor Wolosewicz

University Writing Program, The George Washington University

UW 1020: Law as a Force for Social Change

Professor Zachary Wolfe

December 12, 2022

How Law Can Promote a More Sustainable Fashion Industry Through Incorporating the Interests of Governments, Businesses, and Consumers

Fast fashion has become one of the most profitable industries in human history in only a few decades. This success has come at an increasingly severe cost, producing 10% of global carbon emissions and generating 92 million tonnes of textile waste annually, as of 2020 (Beall, 2020). Unfortunately, this world is largely hidden to consumers. Fast fashion brands present a deceptively perfect picture for consumers, one where they allege they are sustainable while offering tens of thousands of trendy styles at a low cost – a definitively unsustainable business model. One company in particular, Shein, is arguably fast fashion’s largest retailer, with a net worth of around \$100 billion as of April 2022, more than its competitors Zara and H&M combined (Gottfried & Scott, 2022). An undercover investigation by Public Eye, a Swiss justice-focused NGO, found Shein factory employees working twelve hour work days, 75 hours a week, all while only making around \$1,400 a month. (Public Eye, 2021). While human rights violations are unfortunately not uncommon for large corporations in the modern age, the fast fashion industry is unique for its lack of regulation. To change this, current discourse focuses on how companies themselves should change (Speed, 2021; Warasthe et al., 2020) or how consumers respond to environmental claims by brands (Connell, 2010). There is little research on how governments and courts can fill in this gap between consumer and social responsibility and real action, which is imperative to stopping the fast fashion industry from causing even further irreversible damage to our environment. After a careful analysis of law, businesses, and consumers, and how each party contributes to the growing environmental and humanitarian crisis that has resulted from the growth of the fast fashion industry, it is argued that law should be used

to fill in the gaps between the interests of each body and regulate the industry to avoid permanent damage to our planet and correct their corruptive ways.

There is some promise in this realm. Although sparse, some governments have implemented laws that attempt to try regulating the industry. Some aim to improve working conditions by mandating hourly wages and introduce accountability between brands and the workers that they hire in third-party factories, while others focus on fashion company's hidden and exploitative supply chains. First, this paper will summarize contemporary fashion law to understand the protections – or lack thereof – it provides for garment workers and the environment, and the framework of environmental regulation laws. This provides context as to why law has a place in the fashion world. Following this, I will investigate the perspective of businesses, specifically how the idea of corporate and social responsibility can be reflected in modern, unsustainable fashion business models, like that of the brand Shein. Another intersection of law and business includes antitrust laws, which will be explored as a possible barrier for a more environmentally friendly fashion industry. The next and final lens into the issue at hand is that of the consumers. As the ones funding the crisis, it is essential that the drivers and barriers to more sustainable habits are examined to see how consumers have helped the industry grow, and how they can help it move in the right direction.

How Contemporary Fashion Regulations Have Failed to Cause Real Change

The first gap in the US's strategy towards regulating the fashion industry is that it allows, and even encourages, brands to avoid relatively strict regulations by simply manufacturing their goods somewhere else. Contrarily, the US government plays a strong role in the food industry.

They can change how it is grown, what is grown, how it is labeled, etcetera, largely in order to ensure consumers have peace of mind when it comes to what we eat; however, assurances like these vanish for the fashion industry. In the modern world, the garment industry is infamous for its blatant, unchecked exploitation, and in the US, free trade laws allow this trend to continue by encouraging brands to manufacture in places with less strict labor laws. Currently, there is no federal law in the United States that regulates offshore outsourcing (Speed, 2021) but rather these contracts are managed by each state. In fact, with the North American Free Trade Agreement, the US government actually made it easier for businesses to offshore within North America, resulting in an estimated 950,000 jobs lost (p.5). Apparel jobs, due to their lack of regulation and simple business model, were especially attractive outsourcing opportunities to US companies who wanted to avoid paying higher wages in the US. Here is the first major gap in US legislation, as it is much more difficult to monitor businesses that do business in the US rather than ones who are allowed to keep their entire supply chain offshore. Specifically, environmental laws are a key component to making the industry more sustainable, but these are often less strict abroad in the places where fast fashion brands manufacture their goods. In the US, laws such as the Clean Air Act, Clean Water Act, and the Resource Conservation and Recovery act which governs the disposal of solid and hazardous waste – especially important to fashion's business model that encourages waste – all help prevent pictures like those of burning landfills piled high with clothes from happening in the US. But with 97% of clothing sold in the US being manufactured overseas (Wilkinson, 2021), most clothing consumers are buying is not subject to those laws. If US law was expanded to include the waste that companies produce across their supply chains, or policies were enacted to discourage offshore outsourcing, the environmental catastrophe caused by fast fashion would be much easier to manage.

Unfortunately, the current laws that are either in effect or being debated do very little to accomplish that goal. The first law, the only one that has passed, is California S.B. 62. Otherwise known as the Garment Worker Protection Act, this 2021 law made California the first state to require several key restrictions against the fashion industry (Farra, 2021). Some of these include eliminating piecework (where workers are paid per garment rather than hourly wages, usually causing a pay rate of less than \$3 an hour), requiring said hourly wages, issuing penalties for manufacturers and brands who engage in wage theft and illegal pay practices, and more. This accountability within a brand's supply chain is important because so many problems within the fast fashion industry arise from their unregulated supply chain. A significant detail to the fight for these laws was the fact that 158 brands signed a petition to pass S.B. 62 (Farra, 2021). Brands frequently support this kind of law because by removing sweatshop conditions, designers are no longer outcompeted by unethical brands. On the other hand, critics have called the law a "job killer" by increasing costs and liability for employers, and would prefer increased enforcement of existing laws (Hoffman, 2021). By making brands liable for wages that occur under third-party contracts, S.B. 62 may simply influence brands to do their business elsewhere. Another bill, the proposed Fashioning Accountability and Building Real Institutional Change (FABRIC) Act, introduced in both chambers of Congress, works to combine S.B. 62's accountability with a 30% reshoring tax credit to deter offshoring, while another bill in New York aims to require all brands that generate more than \$100 million to disclose their entire supply chains and analyze their impact.(Patton, 2022). While joint liability between manufacturers and brands is an important step towards righting the injustices of the industry and moving towards a more equitable one, these laws will not stop the growth of fast fashion. These laws miss the mark in actually improving the environmental side effects of the industry, which arguably are the most relevant to

consumers through the harm they bring. Unlike the fossil fuel industry that has to meet several standards surrounding their emissions of CO₂ and other pollutants and where they can drill or mine, or the food industry that has stricter restrictions, fashion companies operate recklessly without any repercussions.

International guidelines are equally unhelpful in bringing real change due to their volunteer nature, but international trade regulation in the form of subsidies could be effective in reducing accessibility to fast fashion. For worker's rights in the fast fashion industry, the International Labor Organization (ILO) has established standards for ethical treatment in the workplace. One important set of standards are the eight essential conventions on human rights, to which the US, China, and seven other member countries have only ratified two (Speed, 2021). These include abolishing child labor and forced labor. Notably absent are the freedom of association and protection of the right to organize and the right to collective bargaining. These would go a long way in empowering workers to stand up for their rights, which would lead to a decrease in exploitation in fast fashion factories that force workers to unsustainably pump out garments with no regard to their quality. Additionally, the Organization for Economic Cooperation and Development (OECD) provided another set of standards in 2017 that focused on due diligence within a company's supply chain, which is significant considering the industry's difficulties in controlling their often complex supply chains (OECD, 2017). The guidance advises that increased awareness of the standards by businesses and governments, along with helping the industry have the capacity to carry out due diligence, will greatly improve its ability to prevent harm. Further, the Sustainable Apparel Coalition (SAC) has created a framework for sustainable apparel production, and has introduced the HIGG index to help companies self-assess and measure their environmental and social effects of their production (SAC, 2022). The SAC

also advises policy, specifically in the EU. And while their website boasts members like Amazon, Gap, and H&M, a simple membership has no legal bindings. The international approach is more holistic in nature than domestic ones, and addresses the complex supply chains that exist within the industry, yet it continues to operate largely without law or any other compelling feature for brands. This allows the industry to continue its environmental degradation with a façade of a sustainable promise. A more punishing form of international intervention, through economic changes, may be more impactful. Wilkinson (2021) recommends that, due to the international nature of fast fashion, it only makes sense that the solution is international as well. The US government, like it does for crops such as wheat and corn, could subsidize environmentally friendly brands and reduce the cost of their goods, increasing competition between fast fashion brands and sustainable ones. However, also like the agriculture business that is equally infamous for waste and overproduction, these subsidies would preferably be production-based to disallow this scenario.

How the Structure, Image, and Collaboration of Corporations Has Influenced the Crisis

Even with the mosaic of different approaches to law in the fashion industry as previously described, specific components within businesses could work together with law rather than regulating the industry as a whole. This can be tricky, as even Wang et al. (2021) notes that there is little research on how environmental regulations affect internal corporate behavior, especially considering their environmental responsibility. First, it is essential to understand how the garment business model is so unsustainable in the first place. And with fast fashion's business model, also called an open loop production cycle, recycling and other reductions of waste are not

possible since water and materials like cotton go directly to waste after use (Speed, 2021). More precisely, the wastefulness of the supply chain comes from poor social and ecological standards within the production stages (Warasthe, et al., 2020). The excessive use of toxins and poor labor conditions are the target of Warasthe's study, which analyzes the practice of sustainable supply chain management (SCCM) within the fashion industry. This concept is defined as “the management of material, information, and capital flows as well as cooperation among companies along the [supply chain] while integrating goals from all three dimensions of sustainable development, i.e., economic, environmental, and social” (p. 2). Through investigating this idea in companies in Ethiopia and Germany, it became clear that management orientation was the most important prerequisite for sustainability within a company. Even though most often companies are not required to publish sustainability reports or implement a SCCM, the companies that do are more likely to be considered sustainable (p. 7). Although fast fashion companies such as Shein do publish sustainability reports while also maintaining an unsustainable business model, it is important to note that just the existence of such reports may help companies deliver on sustainable promises – which could be required by law. Also important to note are pollution charges that compel polluting manufacturers to pay for said pollution, which act as market-stimulating environmental regulation (Wang et al., 2021). Upon studying this, the authors concluded that environmental regulations could also aid the growth of green technology innovation because with the pollution taxes, product competitiveness is enhanced. Pollution taxes could therefore help governments promote SCCM.

A key component of how law could influence the image of fashion brands is through literally mandating their speech. Corporate social responsibility, or CSR, is when companies “integrate social and environmental concerns in their business operations and in their interaction

with their stakeholders on a voluntary basis” (Deogracias et al., 2022, p. 26). Simply put, if laws were to be introduced to mandate CSR and hold companies accountable for what they say in their CSR statements, the fast fashion industry would have to come to terms with the consequences of its actions. Without this, CSR is inconsistent, and consumers are easily misled because they do not know the full picture. If consumers know the environmental effects of their favorite brands, it could lead to more competition and generate consumer pressure on companies who do not publish as much information. Even if CSR makes sense for businesses, it is still not mandatory and therefore not very widespread. But companies that do present straightforward CSR statements are not without their controversy. H&M claims on their website that “respecting human rights is essential for H&M Group to operate sustainably and successfully” (H&M Group), all the while just last year the company was involved in a scandal that completely rejected their CSR statement. At one of the brands third-party suppliers in India, male supervisors were sexually abusing female workers, one of whom was murdered (The Guardian, 2017). This makes Shein an important case study in the absence of CSR accountability. As Vittoria (2022) explains, it is impossible for a fast fashion brand like Shein to be sustainable. For one, the company is not transparent. Shein requires its partners to comply with local laws, but there is no third-party certification that this is happening, and those laws are most likely very relaxed. Shein’s code of conduct also mandates that its suppliers “arrange working hours reasonably” and in adherence with local laws; however, going back to the investigation by Public Eye, workers can only work 40 hours as required by Chinese law as opposed to the 75 hours the Shein laborers were working (Public Eye, 2021). These blatant rejections of CSR prove the abusiveness of the fashion industry, and the exigence and necessity of law to step in and prevent any further injustices and deceptions.

The US Supreme Court has considered stepping in, but they punted the decision for later and have allowed fashion companies to continue lying to consumers. In *Nike, Inc. v. Kasky*, Mike Kasky sued Nike under California law, alleging that Nike had made knowingly false statements about its labor practices in press releases and newspapers (Chemerinsky & Fisk, 2004). The Court dismissed the case on grounds the writ was improvidently granted, and the question of commercial speech that was raised remains unanswered. Nike contended that even if its speech was false, it was protected by the First Amendment because it was political – about labor – rather than commercial speech, which has different standards. On the other hand, the California Supreme Court, in favor of Kasky, ruled that Nike’s speech was commercial speech because the speaker engaged in commerce, the intended audience was the consumer, and the speech was related to the sales of Nike’s products (p. 1144). Ethically, the Court should be interested in making clear that companies can not recklessly lie to their consumers about things like how their products are made, who makes them, and under what conditions they were produced. For the argument of this essay, a more determinative answer to what is commercial speech versus speech protected by the First Amendment is essential to the regulation of the fashion industry. While the Federal Trade Commission does have some basic laws concerning what has to be included on a label, including clothing fiber content, country of origin, place of manufacturing, and garment care, these do not go far enough to reflect the total environmental cost of the garment (FTC, 2022). Going back to the example of food, it is entirely illegal in the US to make false statements about what is in a food product, yet any company can label their clothing “eco-friendly” or “green” without consequence. A federal standard for commercial speech would eliminate most “greenwashing”, or making false claims about how environmentally friendly a product is, in the US. Combining a Court standard with the guidelines outlined in the previous passage would

reveal misleading CSR statements and educate consumers to prevent them from funding such an environmentally damaging industry. A notable example of this has been recently set by the European Union. As of March 2022, they have amended their Unfair Commercial Practices Directive to include rules against greenwashing tactics. By 2026, companies who label their clothing “green” or other generic environmental claims without meeting certain certifications or approval will be subject to fines (Proposal COM/2022/143). Legally, the EU finds a basis within an article that provides for protecting consumers and their interests, especially in regards to their right to information about the products they consume.

Another avenue that law could take in relation to businesses is through antitrust law, which if relaxed, could allow companies to work together against fast fashion. In May of 2020, a group of clothing executives and designers signed an open letter to the fashion industry, first the Forum Letter and later expanded into the Rewiring Fashion initiative (Paton et al., 2022). Both advocate for changing the current fashion calendar so that it reflects the actual seasons and clothes deliveries come in a more timely manner, and reimagining fashion shows to possibly include digital ones that cater more toward the consumer (#rewiringfashion, 2020). For the fashion industry, this would cut down on unnecessary waste and travel, two significant areas of improvement of the industry. However, cooperation on these environmental, social, and governance (ESG) issues may seem like companies are violating antitrust laws, particularly if brands were to agree to produce less stock to promote more sales at full-price. But with fast fashion that mindlessly produces year-round, it is increasingly harder for more sustainable companies to compete. The EU raided several of the signatories of those proposals this year, but they may be shifting policy (Paton, 2022). The Dutch Competition Authority (ACM) released consultation on the legal viability of sustainability agreements in the summer of 2020, which are

defined as agreements “aimed at the identification, prevention, restriction, or mitigation of the negative impact of economic activities on people (including their working conditions), animals, the environment, or nature” (Modrall, 2020). The ACM released these pathways for companies to follow because they consider them anti-competitive, including codes of conduct and non-binding agreements that do not change prices. These agreements may seem futile, as voluntary ones have before, but there are some exemptions possible. Among other rules, if a sustainability agreement offers efficiency gains, does not eliminate competition or the restriction of competition is necessary to see sustainability benefits, then the agreement may be legal. This is a very fine line, which is why it is important for countries to consider reevaluating their antitrust statutes as to not prevent collaboration that may be incredibly beneficial for our environment. Putting the benefits of preventing greenhouse gas emissions up against increases in price or other tradeoffs is the only way to put the public interest forward and make collaboration more appealing. Climate change, by nature, necessitates collaboration across sectors and across borders, so it is in our general interest to relax antitrust law in the name of sustainability.

The Impact of Environmentally-Friendly Business Practices on Consumer Behavior

The main issue on the consumer side of the fast fashion crisis is how law can help translate consumer attitudes, which largely support more sustainable fashion, into actual purchasing behavior. To expand on the CSR concepts mentioned earlier, several papers have found that the biggest problem is with consumer education (Cerchia & Piccolo, 2019; Connell, 2010). First, Cerchia & Piccolo (2019) focuses on how CSR, specifically codes of ethics, influence consumer behavior. The ethical consumer generally is one that is concerned about the

products they purchase impact the planet, and they aim to make positive purchasing decisions. This consumer will seek out codes of ethics and CSR statements, but as mentioned before, these can be incredibly misleading because there are so few legal standards for them. Codes of ethics are defined as a “constitution” for the company because they use general principles to guide a brand’s behavior and represent their culture and values (p. 2). Most of the companies that this article surveyed had legally binding codes of ethics, which help force third parties to comply with the brand’s preferred principles. These can be greatly varied. To start, simply describing the code of ethics as containing principles as not rules is a significant distinction. US fashion companies do not ask their foreign suppliers to adhere to US law, instead, they ask that they respect principles (p. 9). While laws are easily enforceable and more “all-or-nothing”, principles are less so, especially considering the structure of fast fashion supply chains and jurisdiction laws. Stricter codes of ethics, or companies that set their own set of laws through contracts, reflect a more sustainable and humanitarian brand. Since codes of ethics have such influence on consumer choice, law has an important place in regulating them as to prevent them from being used deceptively, and should standardize how an “ethical” company looks and functions.

Internal and external barriers to shopping sustainably can and do prevent consumers from making the right choice when buying clothing. This behavior, or eco-conscious consumption, is defined as “behaviors of apparel acquisition, storage, use, maintenance and discard that...[are engaged with because they] create less waste and/or consume fewer resources (Connell, 2010). Internal factors that limit this behavior include knowledge and attitudes about buying eco-friendly clothes. Misunderstandings of the environmental impact of apparel production and consumption, and limited knowledge of more sustainable alternatives, impact what garments consumers buy. Some consumers also find that more eco-friendly garments are not as “in style”

as their fast fashion counterparts (p. 282). On the other hand, external barriers included economic resources and availability of eco-friendly apparel. This study reflects the importance of labeling laws as previously mentioned. While law can not necessarily help eco-friendly businesses market better, it can help educate consumers about what they are buying, and prevent more money from funding the fast fashion giants.

Conclusion

Shein, who was recently named the most popular fashion brand of 2022 for being the most searched brand in 113 countries, continues to maintain its status as a fashion giant (Douglass, 2022). Through uploading hundreds of products every day to its website, the company always has products for every trend, in every size, all at a very low cost. While many are quick to blame the consumer, I argue that this is unfair, and allows the governments and courts who have done so little and the irresponsible capitalistic businesses who sacrifice the public good for profit to get away unscathed. As previously explained, an expansion of regulation over the fashion industry will hold businesses accountable for their exploitation and injustices, and erase any consumer and customer manipulation. Through buttressing CSR and other concepts, law can act as a moderating force, balancing the interests of consumers, governments, and businesses, to stop these continued injustices and prevent yours or my landfill from becoming another burning fashion show of the discarded.

References

Beall, A. (2020, July 12). *Why clothes are so hard to recycle*. BBC Future. Retrieved December 7, 2022, from

<https://www.bbc.com/future/article/20200710-why-clothes-are-so-hard-to-recycle>

This article noted several data that proves how environmentally harmful the fashion industry is, and also included research on more sustainable apparel production methods.

Cerchia, R. E., & Piccolo, K. (2019). The Ethical Consumer and Codes of Ethics in the Fashion Industry. *Laws*, 8(4), 23. <https://doi.org/10.3390/laws8040023>

This article reflects on how effective sustainable CSR practices by companies are on the consumer. They analyze the history of codes of ethics and how they have changed, how they function in the fashion industry, and how consumers react to them. Importantly, the authors recognize the possibility of law reinforcing codes of ethics in order to better educate consumers.

Chemerinsky, E., Fisk, C. (2004) What Is Commercial Speech – The Issue Not Decided in *Nike v. Kasky*. *Case Western Reserve Law Review*, 54, 1143.

This law review article explains the issue of commercial speech, which is core to the *Nike v. Kasky* case and also the potential legal standing for requiring brands to include labels that reflect strict environmental regulations. After analyzing the language and facts of the case, the authors conclude that the definition of commercial speech should be expanded if the Court wants to restrict brands from displaying further falsehoods on their products, which contributes to greenwashing.

Connell, K. Y. (2010). Internal and external barriers to eco-conscious apparel acquisition.

International Journal of Consumer Studies, 34(3).

<https://doi.org/10.1111/j.1470-6431.2010.00865.x>

This article analyzes the factors that may serve as barriers to eco-friendly fashion. A study of 26 American adults focused on these barriers, and found that environmentally friendly clothes are overall preferable to fast fashion. However, there are several internal and external factors that get in the way of consumers actually purchasing eco-friendly clothing, including knowledge about the topic, economic forces, and availability. The authors also recognize the need for greater transparency on clothing labels.

Council Proposal COM/2022/143 of 30 March 2022 amending Directives 2005/29/EC and 2011/83/EU as regards empowering consumers for the green transition through better protection against unfair practices and better information [2022]

This EU proposal targets two amendments concerning unfair commercial practices and consumer rights. This includes banning certain speech, like “generic” environmental claims that lack any substance or are misleading, which will work to increase competition for environmentally friendly brands and hopefully educate consumers about the associated impact that comes with their purchase of clothing.

Deogracias, E., Tung, T., & Zappia, N. (2022). A Closer Look at CSR Practices in Sustainable Fashion: A Guideline for Apparel Brands. *The CSU Journal of Sustainability and Climate Change*, 1(1). DOI: <https://doi.org/10.55671/2771-5574.1008>

This article uses studies of CSR formats and language within fashion companies to

understand the framework of CSR in fashion companies, and the concept can support sustainability. Some problems with CSR that were identified include confusing organization and complicated presentations that do not communicate sustainability practices well, but if done correctly, this can be advantageous for sustainable companies.

Douglass, R. (2022, December 2). *Shein overtakes Zara as most popular fashion brand of 2022*.

FashionUnited. Retrieved December 12, 2022, from

<https://fashionunited.uk/news/business/shein-overtakes-zara-as-most-popular-fashion-brand-of-2022/2022120266570>

A financial advisory firm found that Shein was the most searched company in 113 countries over the course of 2022, followed by Zara, Zalando, and Nike.

Farra, E. (2021, September 30). *California just passed a landmark bill to protect garment workers-here's what it means for the entire fashion industry*. Vogue. Retrieved December 7, 2022, from

<https://www.vogue.com/article/california-sb-62-garment-worker-protection-act>

This article describes the effects of California's S.B. 62 that was passed in 2021, including mandating minimum hourly wage, eliminating wage theft, and overall increasing responsibility and accountability within the garment industry.

Guardian News and Media. (2021, March 9). *Female workers at H&M Supplier in India allege widespread sexual violence*. The Guardian. Retrieved December 8, 2022, from

<https://www.theguardian.com/global-development/2021/mar/09/female-workers-at-hm-supplier-in-india-allege-widespread-sexual-violence>

After an Indian woman who worked at an H&M factory was killed, 25 women from the same factory alleged sexual harassment, assault, and violence by the management. Even though H&M claims to support human rights, other investigations have discovered more cases of gender-based violence in H&M-affiliated factories.

Gottfried, M., & Scott, C. L. (2022, April 5). *Shein valued at \$100 billion in funding round*. The Wall Street Journal. Retrieved December 12, 2022, from <https://www.wsj.com/articles/shein-valued-at-100-billion-in-funding-round-11649126740>

A recent funding round in late march raised between \$1 to \$2 billion, and people involved say that the company is now worth \$100 billion.

Hoffman, A. (2021, September 27). *Calchamber urges governor to veto Garment Industry job killer bill*. Advocacy. Retrieved December 7, 2022, from <https://advocacy.calchamber.com/2021/09/22/calchamber-urges-governor-to-veto-garmen-t-industry-job-killer-bill/>

This piece was posted by the business advocate group for the California Chamber of Commerce. The group labeled S.B. 62 as a job killer, claiming that it will force jobs to leave the state without fixing the existing problems within the industry.

H&M Group. (2022). *Human Rights*. H&M Group. <https://hmgroup.com/sustainability/fair-and-equal/human-rights/>

This website contains H&M's human rights statement.

Modrall, J. (2020, October 22). *Sustainability and antitrust – EU and Dutch consultations*.

Informa Connect. Retrieved December 8, 2022, from

<https://informaconnect.com/sustainability-and-antitrust-eu-and-dutch-consultations/>

This article reviews antitrust consultation from the EU and the ACM to consider how companies can be more sustainable without violating antitrust laws. The EU focuses on the inclusion of state aid to support environmental goals, merger review, and anti-competitive agreements, while the ACM guidelines outline how agreements that are not anti-competitive, fit under an exemption, or fall under legislative jurisdiction may be deemed legal under current antitrust law.

Organization for Economic Cooperation and Development. (2017). *Due Diligence for Responsible Supply Chains in the Garment and Footwear Sector*.

This PDF published by the OECD details the organization's guidance for achieving due diligence within the fashion industry. Since the industry's supply chain is so widespread, these rules help create a common standard for holding brands accountable and keeping all parts of the supply chain responsible for their actions.

Paton, E. (2022, September 30). *The new laws trying to take the anxiety out of shopping*. The New York Times. Retrieved December 8, 2022, from

<https://www.nytimes.com/2022/09/30/fashion/fashion-laws-regulations.html>

This article reports on several new laws that try to regulate the fashion industry, including S.B. 62, the FABRIC Act, New York's Fashion Sustainability and Social Accountability Act, and the EU Proposal 143.

Paton, E., Livni, E., & Gross, J. (2022, November 7). *When does collaboration become collusion?* The New York Times. Retrieved December 8, 2022, from <https://www.nytimes.com/2022/11/07/fashion/fashion-industry-antitrust-sustainability.html>

This article uses expert advice to debate the viability of sustainability agreements under current antitrust law. In 2022, companies who had signed one such agreement were raided by the European Commission on grounds that they were involved in restriction of competition. This raises the question of how ESG can be implemented within a company without violating the law.

Speed, A. G. (2021). *The Impact of Fast Fashion and International Law on Workers and the Environment* (thesis). Retrieved from https://shareok.org/bitstream/handle/11244/329906/oksd_speed_HT_2021.pdf?sequence=1&isAllowed=y#:~:text=thieves%20and%20resellers.-,Fast%20Fashion%20uses%20an%20open%20loop%20production%20cycle%20that%20actively,of%20the%20dirty%20water%20outside.

This thesis examines how law, especially international law, does not adequately protect workers or the environment. A combination of US law that encourages companies to move overseas and poor international laws that do little to protect workers in these overseas countries results in the current environmental disaster of fast fashion. However, the advocacy of worker's rights, stricter labor laws, and a rehaul of the garment industry can fix the crisis.

Sustainable Apparel Coalition. (2019). *Sustainable Apparel Coalition*. Apparelcoalition.org.
<https://apparelcoalition.org/>

This website explains the purpose of the SAC, which is a stakeholder nonprofit alliance that has created an index for companies to measure their environmental impact.

Vittoria, B. (2022). *Fast Fashion and Corporate Social Responsibility: The Baffling Case of Shein* (thesis). *LuissThesis*. Retrieved December 8, 2022, from
http://tesi.luiss.it/33451/1/243851_BOTTINI_VITTORIA.pdf.

The author of this paper considers how Corporate Social Responsibility (CSR) can be applied to the fast fashion industry, if at all, through diving into the history of fast fashion and CSR and using Shein as a case study. In the end, the author concludes that fast fashion can neither be sustainable nor ethical, as its production is simply too excessive. They determine that even if these brands say that they do have CSR policies, they do not provide the transparency to prove it, and their business models are inherently incompatible with CSR.

Wang, Y., Yang, Y., Fu, C., Fan, Z., & Zhou, X. (2021). Environmental regulation, environmental responsibility, and green technology innovation: Empirical research from China. *PloS one*, 16(9), e0257670. <https://doi.org/10.1371/journal.pone.0257670>

In order to recommend policies that help grow the economy and protect the environment, this paper uses a study that mathematically analyzed the connection between environmental responsibility and green technology innovation. The authors found that these two factors can work with environmental regulation to promote sustainability.

Warasthe, R., Schulz, F., Enneking, R., & Brandenburg, M. (2020). Sustainability Prerequisites and Practices in Textile and Apparel Supply Chains. *Sustainability*, 12(23), 9960.

<https://doi.org/10.3390/su12239960>

The authors of this article used 10 interviews with managers of Ethiopian production and German sustainable fashion businesses to understand how SCCM practices can be better included in the industry. They found that management orientation, followed by the interests of consumers, were the biggest driving prerequisites for a more sustainable supply chain.

Wilkinson, K. L. (2021). A legal solution to a fast fashion problem. *Arizona Journal of Environmental Law and Policy*, 11(2), 186-208.

This article first lays out the background of the fast fashion problem, before looking closely at some companies that are “good actors” like Everlane, and some that are “bad actors” like H&M and Zara. The author then begins to analyze the impact of current laws, concludes that they will be ineffective, and instead recommends tariffs and subsidies.

75-hour weeks for Shein: Public Eye looks behind the Chinese onli... Public Eye. (2021, November 12). Retrieved December 8, 2022, from

<https://www.publiceye.ch/en/media-corner/press-releases/detail/75-hour-weeks-for-shein-public-eye-looks-behind-the-chinese-online-fashion-giants-glitzzy-front>

This investigation found workers in a Chinese factory that produced goods for Shein working for an illegal amount of hours.

#rewiringfashion. (2020). Retrieved December 8, 2022, from <https://www.rewiringfashion.org/>

This website explains the Rewiring Fashion Initiative. Signed by a group of retailers, designers, and executives, it aims to change the unsustainable fashion calendar and modernize the format of the typical fashion show.